ETHICS-WASHING

When the show of ethics replaces the substance of it

A VADEMECUM



The appearance of virtue, standing in for the practice of it — the AI cousin of greenwashing.

What it is

Making a public show of ethical concern to avoid binding accountability — while changing little or nothing.

THE SAYING

- Glossy AI principles
- An ethics board or officer
- The language of "responsible AI"
- Funded academic partnerships

THE DOING

- Builds what it would have anyway
- Lobbies against binding laws
- Disbands the board when it dissents
- Nothing costly actually changes

The tell is the gap: ethics real as performance, absent as practice.

Why it works

It isn't just lying. It's strategically useful in three specific ways.



A substitute for law

"We self-regulate — you don't need to." Ethics is vague and unenforceable, which is exactly what makes it a shield against binding rules.



It captures critics

Fund the researchers, seat them on the board, sponsor the conference — and opposition becomes a stakeholder with a reason to soften.



It reframes the problem

Turns a question of POWER (who decides, who's constrained) into a question of CHARACTER ("trust us to be good") — far comfier for the powerful.

Further reading: Ben Wagner, 'Ethics as an Escape from Regulation: From Ethics-Washing to Ethics-Shopping?' (2018).

The heart of it: ethics as a shield

Ethics is attractive to the powerful precisely because it is softer than law.

Voluntary ethics

- Aspirational and vague.
- You can't be sued for breaking your own principles.
- Looks like accountability — carries none of its teeth.

Binding law

- Enforceable, with real consequences.
- Overrides a business decision whether the company likes it or not.

"We've got this" said to a regulator is the whole move: voluntary ethics offered as a reason not to legislate.

The trap in the critique

Be careful: the accusation is powerful — and easy to abuse.



If ANY corporate ethics is dismissed as "just washing," companies are damned if they don't (irresponsible) and damned if they do (hypocrites). That unfairness discourages the real thing.



So the real skill isn't SPOTTING washing (anyone can be cynical). It's DISTINGUISHING the performed from the genuine — because some boards, principles, and officers do real work.

The test: real or performed?

Don't ask what a company SAYS. Ask whether a mechanism can override a business decision.

Can it stop a launch?

Does the ethics board have the power to actually halt a product — and has it ever?

Is the commitment costly?

Does it forgo real revenue, or is it free to make and free to keep?

Which way does it lobby?

Does the company push FOR or AGAINST binding regulation of itself?

Is there a consequence?

When a principle is broken, does anything actually happen — or is it just an awkward report?

Every question is an enforceability question. A principle without a mechanism is a promise.

Vademecum — the essentials

Definition

A show of ethics that avoids accountability while changing nothing. Greenwashing for AI.

Its purpose

Voluntary ethics offered as a reason not to legislate — a shield against binding law.

Its trick

Reframes a question of power as a question of character. Trust us, don't constrain us.

The caution

The accusation proves too much if it dismisses all corporate ethics — some is genuine.

The real skill

Not spotting washing, but distinguishing performed from genuine.

The test

Can a mechanism override a business decision? Enforceability is the whole tell.

The word meant to signal virtue becomes the instrument for escaping constraint.